

Lemke v. Mortgage Electronic Registration Systems Inc.

21CV45420

MOTION FOR ORDER DEEMING MATTERS ADMITTED

Plaintiff John F. Lemke moves for an order deeming the requests for admission admissions propounded on Defendant, LoanCity, Inc. be admitted and sanctions be admitted.

Moving party has failed to comply with Local Rule 3.3.7, enacted January 1, 2018, in that the Notice of Motion does not include the mandatory language regarding the Court's tentative ruling system. Pursuant to said local rule, lack of compliance provides a specific ground to deny any such procedurally-deficient motion. Based solely upon moving party's failure to comply with Local Rule 3.3.7, the motion is DENIED without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to relevant statutes.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal order is required.

Callison, *et al.* v. Ortiz, *et al.*

20CV45077

**DEFENDANTS' MOTION FOR JUDGMENT ON THE
PLEADINGS**

Defendants Rose Ortiz and Daniel Riordan move, pursuant to Code of Civil Procedure section 438, to dismiss Plaintiffs' complaint on the grounds that the first cause of action fails to allege facts sufficient to state a cause of action, is uncertain, or such cause of action does not exist.

Moving parties have failed to comply with Local Rule 3.3.7, enacted January 1, 2018, in that the Notice of Motion does not include the mandatory language regarding the Court's tentative ruling system. Pursuant to said local rule, lack of compliance provides a specific ground to deny any such procedurally-deficient motion. Based solely upon moving parties' failure to comply with Local Rule 3.3.7, the motion is DENIED without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to relevant statutes.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal order is required.